

State Of Alabama
Unified Judicial System

Form CR-65A Rev. 10/2024

ORDER
ON PETITION FOR EXPUNGEMENT
(Section 15-27-1 et.seq., Code of Alabama 1975)

Case No.

IN THE CIRCUIT COURT OF _____, ALABAMA

participant/case info review zone

(Name of County)

[] STATE OF ALABAMA

[] MUNICIPALITY OF _____

v.

(Court of Jurisdiction of case to be Expunged)

(Defendant/Petitioner)

On _____, the Petitioner filed a Petition for Expungement of Records. The Defendant/Petitioner's filing cannot be ruled upon because the Petition does not satisfy the following requirements of Ala. Code § 15-27-1, et seq. (1975):

- [] Does not include a sworn statement that the Petitioner has satisfied all requirements set out under Ala. Code § 15-27-1, et seq. (1975).
- [] Does not include a sworn statement declaring whether the Petitioner has previously applied for an expungement in any jurisdiction and whether an expungement has been previously granted or denied.
- [] Does not specify the grounds or reasons why the Petitioner is seeking the expungement.
- [] Does not specify the charge, conviction, or youthful offender adjudication to be expunged.
- [] Does not specify the name and address of the agency or department that made the arrest.
- [] Does not specify the name and address of any agency or department where the Petitioner was booked/incarcerated/detained.
- [] Does not include a certified record of arrest from the appropriate agency.
- [] Does not include a certified record of disposition or case action summary from the appropriate court.
- [] Does not include a certified official criminal record or history from the Alabama Law Enforcement Agency (ALEA).
- [] Does not certify that the Petition and required supporting documents have been served on the required parties. (The District Attorney, the relevant law enforcement agency, and/or the Circuit Court)
- [] Does not include proof that all terms and conditions imposed by the sentencing court have been satisfied and that all restitution, including interest, court costs, fines and statutory fees ordered by the sentencing court, have been paid in full. Ala. Code § 15-27-12 (1975).
- [] The Petitioner has not paid the \$500.00 Administrative Filing Fee pursuant to Ala. Code § 15-27-4 (1975), and the Court did not find Petitioner indigent and did not waive the filing fee after reviewing the Affidavit of Substantial and Hardship Order form that was submitted with the petition.
- [] Other: _____

The Petitioner is granted sixty (60) days from the date of this Order in which to correct each of the errors or omissions specified above. After sixty (60) days, the Court will reconsider the Petition. If the errors or omissions have not been corrected, the Petition will be dismissed without further notice.

The Clerk is directed to provide a copy of this Order to the Petitioner's attorney or to the Petitioner at the address on record if the Petition is filed *pro se*.

SO ORDERED this _____ day of _____, 20____.

signature/date review zone

CIRCUIT JUDGE